

CONTRACTLENS ANALYSIS SUMMARY REPORT

Report Generated: 2026-06-27 01:56:19 | Contract Profile: Indian Institute of Technology Kanpur (IITK)

1. CONTRACT PARAMETERS PROFILE

Effective Date:	Not Specified
Duration:	2 Years
First Party (Client):	Indian Institute of Technology Kanpur (IITK)
Second Party (Contractor):	Not Specified
Jurisdiction / Law:	Not Specified

2. DETECTED RISK & NEGOTIATION REDLINES

[1] 4.0 Employment of workmen by the Service provider (Page 12) - HIGH RISK

Risk Type: unilateral authority clauses | Criticality: 8/10 | Confidence: 95.0%

Legal Rationale: This clause allows the Warden-in-charge/Warden to unilaterally demand the removal of any of the service provider's employees based on subjective assessments of misconduct, misbehavior, or health, specifically restricting the service provider from questioning the decision. This undermines the service provider's role as an independent employer and risks employment disputes under labor laws.

Simple Explanation: The client can force the service provider to fire or remove any employee without giving a reason, and the service provider is not allowed to question or challenge this decision.

Recommended Action: Negotiate to require written notice, specific justifiable grounds, and a reasonable investigation or opportunity for the service provider to address the employee issue before a removal mandate is issued.

[2] 4.0 Employment of workmen by the Service provider (Page 13) - HIGH RISK

Risk Type: indemnity clauses | Criticality: 9/10 | Confidence: 95.0%

Legal Rationale: This clause establishes a broad indemnity for any statutory violation and automatically triggers an immediate termination of the entire contract upon any single non-compliance or violation of various complex labor statutes. It lacks a cure period or material threshold, making the contract highly unstable.

Simple Explanation: Any violation of labor laws, no matter how minor or accidental, immediately indemnifies the Institute and allows them to terminate the contract on the spot without giving the provider a chance to fix the issue.

Recommended Action: Request a materiality qualifier and a minimum cure period (e.g., 15-30 days) to rectify any statutory non-compliance before the Institute can terminate the agreement.

[3] 6.1 Security Deposit (Page 17) - HIGH RISK

Risk Type: security deposit deductions | Criticality: 8/10 | Confidence: 95.0%

Legal Rationale: The clause provides the Institute with an 'unqualified option' to forfeit the security deposit if the service provider fails to meet any commitment or owes any amount. This creates a risk of unilateral and potentially arbitrary forfeiture of a significant sum (Rs. 5,00,000/-) without due process or a dispute resolution mechanism first taking place.

Simple Explanation: The Institute can take and keep the entire security deposit of 5 Lakhs at its own discretion for any failure, without having to prove damages or go through an independent review.

Recommended Action: Amend the wording to state that the security deposit may only be applied to actual, documented losses directly caused by a material breach of contract, and only after giving the provider written notice and a 15-day period to cure the breach.

[4] 6.2 Termination (Page 17) - HIGH RISK

Risk Type: unilateral termination | **Criticality:** 9/10 | **Confidence:** 95.0%

Legal Rationale: This clause allows the Institute to terminate the contract for any reason (termination for convenience) on 30 days' notice, and under 'exceptional circumstances', allows this period to be reduced to an unspecified amount of time. This leaves the service provider with zero business certainty and potential sudden, near-immediate termination.

Simple Explanation: The Institute can cancel the contract at any time for no reason with 30 days' notice, and can shorten that notice period even further whenever they declare 'exceptional circumstances'.

Recommended Action: *Negotiate to make the termination for convenience mutual, remove the language allowing the 30-day notice period to be reduced, and ensure the provider is compensated for mobilization and wind-down costs if terminated without cause.*

[5] 7.2 Power of Entry (Page 24) - HIGH RISK

Risk Type: unilateral authority clauses | **Criticality:** 8/10 | **Confidence:** 90.0%

Legal Rationale: This clause grants the Institute aggressive, self-help remedies, allowing them to enter the premises, take possession of the provider's assets/materials, and sell them at their own discretion to recover any certified deficiencies. This completely bypasses formal judicial processes.

Simple Explanation: If the contract is canceled, the Institute can seize your leftover physical assets and materials, sell them for whatever price they want, and keep the money to pay off any alleged debts.

Recommended Action: *Limit the power of entry and seizure to situations involving a court order, or require a mutual inventory check, written valuation, and 30 days notice before any assets or materials can be liquidated.*

[6] 7.14 Arbitration: (Page 27) - HIGH RISK

Risk Type: arbitration risks | **Criticality:** 8/10 | **Confidence:** 95.0%

Legal Rationale: The clause dictates that the Sole Arbitrator is unilaterally appointed by the Deputy Director of the Institute. This lacks neutral appointment safeguards. Additionally, it attempts to block the parties from challenging the arbitrator's jurisdiction once the award is made, which is legally problematic under Indian arbitration laws.

Simple Explanation: The arbitrator who resolves contract disputes is selected entirely by the Institute, and you are not allowed to challenge the arbitrator's authority after they make a ruling.

Recommended Action: *Amend the clause to require a mutually agreed-upon arbitrator, or specify that the arbitrator must be appointed in accordance with the rules of a recognized, independent arbitral institution.*

[7] 6.5 Interpretation of Contract Documents : (Page 19) - MEDIUM RISK

Risk Type: scope creep risks | **Criticality:** 7/10 | **Confidence:** 95.0%

Legal Rationale: The clause defines the 'Scope of Work' very broadly and gives the Warden-in-charge/Warden unilateral authority to finalize finer details during execution. This exposes the service provider to scope creep and additional operational costs without a clear mechanism for price escalation.

Simple Explanation: The client has defined the scope of work loosely and can demand additional tasks and finer details during the contract's term without paying extra.

Recommended Action: *Specify that any additions or changes to the scope of work must be mutually agreed upon in writing via a formal change order process with corresponding adjustments to the pricing structure.*

[8] ARTICLE-5 (Page 15) - MEDIUM RISK

Risk Type: payment risks | **Criticality:** 7/10 | **Confidence:** 95.0%

Legal Rationale: The contract explicitly disclaims any liability for delays in processing bills for raw materials and food items. This leaves the service provider vulnerable to carrying significant cash flow burdens and financing costs due to delayed payments, without recourse to interest or penalties for late payment.

Simple Explanation: The Institute is not responsible if they take a long time to process and pay your raw material procurement bills, which could severely impact your cash flow.

Recommended Action: *Request the removal of the disclaimer of liability for delays, and insert a clause stating that payments not made within 30 days of submission will accrue interest at a reasonable rate.*

[9] ARTICLE-5 (Page 16) - MEDIUM RISK

Risk Type: dispute restrictions | **Criticality:** 6/10 | **Confidence:** 95.0%

Legal Rationale: This clause imposes an exceptionally short statute of limitations (one week from the occurrence of the event) for the service provider to assert any claims or compensations not expressly provided in the contract. Failure to meet this tight deadline results in a complete waiver of the claim.

Simple Explanation: You must submit any unexpected claims or compensation requests within one week of the event, or you lose the right to claim them forever.

Recommended Action: *Extend the claim submission period from 'one week' to a more reasonable timeframe, such as 30 to 60 days, to allow proper assessment of losses.*

[10] 7.3 Force Majeure (Page 24) - MEDIUM RISK

Risk Type: force majeure risks | **Criticality:** 6/10 | **Confidence:** 95.0%

Legal Rationale: The clause gives the Institute a unilateral option to cancel the contract in whole or in part if a force majeure event lasts longer than one month. A balanced force majeure clause should allow either party to terminate if the suspension continues for a prolonged period.

Simple Explanation: The Institute alone has the right to cancel the contract if a natural disaster or government restriction stops work for over a month.

Recommended Action: *Make the termination right mutual, so that either party may terminate the agreement if the force majeure condition persists for more than 30 or 60 consecutive days.*

3. AUTOMATED GAP AUDIT (MISSING TERMS)

[1] Intellectual Property Rights (IPR) - Severity: MEDIUM

Plain English Translation: This clause makes sure both the Institute and the catering provider keep ownership of their own logos, brand names, and software tools, and prevents either party from using them without official permission.

Suggested Draft Clause:

Except as explicitly stated herein, neither Party shall acquire any right, title, or interest in any Intellectual Property Rights (including trademarks, logos, copyrights, or proprietary business processes) owned by the other Party prior to or during the term of this Contract. The Service Provider shall not use the Institute's name, logo, or trademarks in any promotional material without prior written consent from the Institute.

[2] Data Privacy & Confidentiality - Severity: HIGH

Plain English Translation: This clause legally protects the personal information of the students and staff using the mess (like their names, IDs, and payment details) from being leaked, shared, or misused by the service provider.

Suggested Draft Clause:

The Service Provider shall maintain strict confidentiality regarding all personal, academic, financial, and biometric data of the residents, students, and staff of the Institute obtained during the performance of its services. The Service Provider shall comply with all applicable data protection laws and regulations and shall not disclose, sell, transfer, or share any such data with third parties without the prior written consent of the Institute.

[3] Mutual Termination for Convenience - Severity: HIGH

Plain English Translation: This clause allows either the Institute or the service provider to end the contract early by giving a set notice (like 60 days) without needing to prove that the other party did something wrong. It provides a clean and safe exit strategy.

Suggested Draft Clause:

Either Party may terminate this Contract for convenience, without cause, by providing at least sixty (60) days prior written notice to the other Party. Upon the effective date of such termination, the Service Provider shall be entitled to payment for services satisfactorily rendered up to the date of termination, and shall facilitate an orderly transition of services.

[4] Mediation and Dispute Escalation Steps - Severity: MEDIUM

Plain English Translation: Instead of running straight to expensive courts or formal legal battles when a disagreement happens, this clause forces both sides to sit down and try to resolve the issue through friendly talks or professional mediation first.

Suggested Draft Clause:

In the event of any dispute or difference arising out of or relating to this Contract, the Parties shall attempt to resolve the issue amicably through mutual negotiations between the Warden-in-charge and the Provider's authorized representative. If the dispute is not resolved within thirty (30) days, the Parties shall submit the dispute to mediation before a mutually agreed-upon mediator, prior to initiating any formal arbitration or legal proceedings.

[5] Subcontracting Restrictions - Severity: HIGH

Plain English Translation: This clause stops the catering company from secretly hiring a different, unvetted company to do their job (like cooking the food or managing the kitchen) without the Institute's explicit permission.

Suggested Draft Clause:

The Service Provider shall not assign, transfer, or subcontract any portion of the work or services under this Contract to any third party without the express, prior written consent of the Institute. Any unauthorized subcontracting shall be considered a material breach of contract, entitling the Institute to terminate the agreement immediately without liability.

4. INCOMPLETE PLACEHOLDERS LOCATOR

[1] Placeholder: " _____ " (Page 1)

Context: ... AND M/s _____ registered under _____ and having its office at _____ (hereinafter referred to as ...)

[2] Placeholder: " _____ " (Page 1)

Context: ... AND M/s _____ registered under _____ and having its office at _____ (hereinafter referred to as The Service Provider which expression shall include his/their respective heirs, executors, ...)

[3] Placeholder: " _____ " (Page 1)

Context: ... The Service Provider which expression shall include his/their respective heirs, executors, administrators and assignees), represented by _____ on the other part. ...

[4] Placeholder: " _____ " (Page 2)

Context: ... the General Conditions of the Contract. AND whereas the Service Provider has deposited a sum of Rs. _____ (____ lakhs only) as earnest money in the form of a Demand Draft No. _____ dated _____ issued by _____ ...

[5] Placeholder: " _____ " (Page 2)

Context: ... AND whereas the Service Provider has deposited a sum of Rs. _____ (____ lakhs only) as earnest money in the form of a Demand Draft No. _____ dated _____ issued by _____ in favour of Hall Management, IIT Kanpur payable at UBI, I.I.T. ...

[6] Placeholder: " _____ " (Page 2)

Context: ... as earnest money in the form of a Demand Draft No. _____ dated _____ issued by _____ in favour of Hall Management, IIT Kanpur payable at UBI, I.I.T. Branch Kanpur as performance guarantee for the said work and has agreed that this be ...

[7] Placeholder: " _____ " (Page 2)

Context: ... AND whereas the Service Provider has promised to deposit Rs. _____ (____ lakhs only) as remaining part of the security deposit in the form of a Bank Draft latest by ...

[8] Placeholder: " _____ " (Page 2)

Context: ... only) as remaining part of the security deposit in the form of a Bank Draft latest by _____
...

[9] Placeholder: " _____ " (Page 3)

Context: ... _____ M/s _____ ...

[10] Placeholder: " _____ " (Page 3)

Context: ... 1 _____ ...

[11] Placeholder: " _____ " (Page 3)

Context: ... 2. _____ ...

[12] Placeholder: " ____ " (Page 6)

Context: ... 2.1 The Hall of Residence No.-__ is a ____s· Hostel situated inside the campus of the Institute with an exclusive and fully secured premise of its own. The ...

[13] Placeholder: " ____ " (Page 6)

Context: ... residents with a centrally located dining facility, administrative block, coffee shop, etc. The hostel is designed to accommodate a total of ____ students approximately with a minor variation. ...

[14] Placeholder: " _____ " (Page 8)

Context: ... keep the actual cost of the raw material including cooking fuel within a value of Rupees _____ only (Rs. _____) per student per day. This value should not go up by more than Rs. 3/- for a period of one ...

[15] Placeholder: "[s]" (Page 12)

Context: ... provider. If in the opinion of the Institute any of the service provider's employee [s] is found to be suffering from any such disease/condition or if any employee(s) of the service provider is found to have committed ...

[16] Placeholder: " _____ " (Page 15)

Context: ... The charges for providing operational services in the mess of Hall-__ shall be Rs. _____ (rupees _____ only) per month ...

[17] Placeholder: "[ten]" (Page 15)

Context: ... bills shall normally be for purchase of preceding two weeks. The Warden in- charge/Warden shall make efforts that the bills are paid within 10 [ten] working days of submission. The institute shall not be responsible for any ...

[18] Placeholder: " _____ " (Page 16)

Context: ... defined for purpose of Article 3.5, plus fixed cost, suitably rounded. This fixed cost shall be calculated by dividing Rs. _____/- by thirty times the number of students i.e. Rs. _____÷(number of students)X30. The coupon ...

[19] Placeholder: " _____ " (Page 16)

Context: ... fixed cost shall be calculated by dividing Rs. _____/- by thirty times the number of students i.e. Rs. _____÷(number of students)X30. The coupon cost may be modified from time to time by the institute. The service provider ...